

Court No. - 21

Case :- WRIT - C No. - 14687 of 2023

Petitioner :- Rakesh Dhar Bind

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Samya Lal Pandey, Vidya Kant Tripathi

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The instant petition has been filed challenging the demand notices dated 14.03.2023 and 18.01.2023 issued by respondent no.3 for recovery of a sum of Rs.18,170/- from the petitioner in respect of a electricity connection taken by his late father.

The case of the petitioner is that the respondents had issued a notice dated 18.01.2023 in his name granting him thirty days time by way of last opportunity against proposed assessment of Rs.20,170/ and compounding fee of Rs.18,170/- failing which final assessment would be made. The petitioner filed objection against the same on 27.02.2023 by registered post (Annexure-6), however, without deciding the same, the respondents are proceeding to recover the amount as they had issued a demand notice on 14.03.2023.

Learned Counsel for the respondent-electricity department tried to contend that notice dated 18.01.2023 is an order of final assessment. However, we are not ready to accept the submission, inasmuch as, the said notice grants thirty days time by way of last opportunity to file objection against the provisional assessment. It is not an order of final assessment.

Accordingly, the demand notice dated 14.03.2023 is hereby quashed. The respondent department is directed to provide opportunity of hearing to the petitioner and, thereafter, pass an order of final assessment strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

The petition stands disposed of accordingly.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 1.5.2023

S.P.